

24STCV23505 24STCV23505

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-31

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Case Number: 24STCV23505 Hearing Date: July 31, 2026 Dept: 510

No.

16 - Oscar Javier Madrid Barahon, et al. v. Kay Compton Investors LLC, et al.

Defendant Hwy 111 Hotel Group, LP's

Demurrer and Motion to Strike Portions of Plaintiffs' Second Amended Complaint

Defendant

Hwy 111 Hotel Group, LP demurs to Plaintiffs' second amended complaint (SAC) that alleges causes of action for (1) breach of implied warranty of habitability; (2) breach of statutory warranty of habitability; (3) breach of the covenant of quiet enjoyment; (4) negligence; (5) violation of civil code section 1942.3; (6) private nuisance; and (7) violation of unfair competition law.

Background

This

case concerns habitability issues at real property that Defendant owned from July 3, 2018, to September 19, 2019. In September 2024, the Plaintiffs, which include 14 adults and 17 minors, initiated this action to recover on their claims

The

Court previously sustained Defendant's demurrer to Plaintiffs' first amended complaint on the grounds that their claims were barred by the statute of limitations. Specifically, the Court found Plaintiffs did not adequately allege facts showing tolling under the continuous accrual doctrine or delayed discovery rule. For the delayed discovery rule, the Court reasoned:

The allegations on the face of the FAC do not support a reasonable inference that Plaintiffs did not discover the substandard living conditions arising in 2018-2019 until several years later. Nor does the Court find it plausible that Plaintiffs did not reasonably discover major alleged habitability issues, such as vermin and rodent infestations, lack of hot water, and plumbing deficiencies, until recently.

(1/30/26
Minute Order.)

The
Court granted Plaintiffs leave to amend.

Statute
of Limitations

A
demurrer should be sustained where “the complaint shows on its face that the statute [of limitations] bars the action.” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315.)

“The
discovery rule provides that the accrual date of a cause of action is delayed until the plaintiff is aware of her injury and its negligent cause.” (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 317.) To rely on the discovery rule, the plaintiff “must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.” (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 808.)

In
the SAC, Plaintiffs allege more facts to support the delayed discovery rule. Specifically, Plaintiffs now allege:

The extent of the water damages
caused by such leaks and the extent of the mold and mildew caused thereby were not immediately known or visible to Plaintiffs and could not readily be discovered through reasonable inspection; Plaintiffs were not authorized to conduct any invasive/destructive testing of any of the drain pipes, water

supply pipes, pumps or any part of the plumbing system, including removing any pipes or pumps, testing pipes for leaks, or opening any walls or ceilings to access any such pipes, or to conduct any sampling or testing for mold inside any walls or ceilings where the plumbing leaks originated.

(SAC,
¶ 8.)

While

these allegations show that Plaintiffs were unable to make an earlier discovery, they do not demonstrate the time and manner of the discovery as required. For example, Plaintiffs do not allege a date on which they discovered the leaks or mold, nor any way they discovered them, such as a repair or inspection. Without facts alleging the time and manner of discovery, Plaintiffs cannot invoke the discovery rule.

Disposition

Defendant

Hwy 111 Hotel Group, LP demurrer to Plaintiffs' second amended complaint is sustained with 21 days' leave to amend.

Because

the demurrer is sustained with leave to amend, the motion to strike is moot.